

All travellers coming to Australia must be aware of Australia's strict biosecurity requirements and the penalties for not complying with those requirements.

In accordance with the Biosecurity Act 2015 and the Regulatory Powers (Standard Provisions) Act 2014, a biosecurity officer can give infringement notices in the airport or seaport for:

- s 126(2): not answering questions or providing information in relation to goods when requested;
- s 128(2): not following directions given by a biosecurity officer in relation to your goods or baggage;
- s 532(1): knowingly providing false or misleading information or omitting information when asked;
- s 533(1): knowingly producing a false or misleading document, including your Incoming Passenger Card (IPC) or Crew Declaration; or
- s 186A(1): bringing or importing conditionally non-prohibited goods into Australian territory, a condition applying to the goods has not been complied with and the goods are concealed for the purpose of preventing the goods from being found, or preventing the true nature of the goods from being determined, by a biosecurity official.

Infringement notice

You may be given an infringement notice if a biosecurity officer finds goods in your baggage that you have not declared on your Incoming Passenger Card (IPC), or crew declaration, or informed them about when asked.

You must answer questions about your goods truthfully, including when completing the questions on the IPC or crew declaration.

Payments

Airports

You can choose to pay the infringement notice before leaving the airport.

If you have been given a 2-penalty unit infringement notice and do not wish to pay at the time, you can request an extension of time to pay by asking the biosecurity officer who has given you the infringement notice before leaving the airport.

If you have been given an infringement notice at the airport and have travelled to Australia on a visa, you may be referred to Australian Border Force (ABF) officers for visa cancellation. See the [Department of Home Affairs](#) for more information.

Seaports

The department cannot currently accept payments for infringement notices at seaports.

If you have been given an infringement notice at a seaport, you will have an extended payment period. The payment period date will be displayed on your infringement notice and payment advice form that you receive from the biosecurity officer.

Frequently asked questions

Under Commonwealth law, financial penalties, including infringement notice amounts, are calculated in 'penalty units'. Section 4AA of the Crimes Act 1914 sets the dollar amount of one penalty unit. As of 1 July 2026 the amount of one penalty unit is set at \$364.

The amount payable under an infringement notice is specified in the notice. The minimum amount for Infringement notices given at the airport for the alleged contravention of s 126(2), s 128(2), s 532(1) or s 533(1) of the Biosecurity Act is 2 penalty units (\$728). However, if a traveller fails to declare goods of a kind known to pose a high level of biosecurity risk, and in doing so allegedly contravenes s 532 (1) or s 533 (1), the infringement notice amount increases to 6 penalty units (\$2,184) or 12 penalty units (\$4,368) depending on the risk of the goods. If a traveller conceals conditionally non-prohibited goods that are brought or imported into Australian territory, and in doing so allegedly contravenes s 186A(1), the infringement notice amount increases to 20 penalty units (\$7,280).

The amount payable on an infringement notice is not discretionary. It is important to note that biosecurity officers do not have the legal authority to make decisions on how many penalty units will apply to each infringement notice.

The goods, or classes of goods, that will attract a higher infringement notice amount are to be listed in a determination made by the Director of Biosecurity under subsection 524A(1) of the Biosecurity Act and can be found on the [Federal Register of Legislation website](#).

You may choose not to pay the amount payable that is specified on the infringement notice. However, if you choose not to pay then court proceedings seeking a civil penalty order under Part 4 of the Regulatory Powers (Standard Provisions) Act 2014 may be brought against you in relation to the alleged contravention.

The maximum penalty that a court could impose for each contravention is:

- s 126(2) - 300 penalty units (\$99,000)
- s 128(2) - 300 penalty units (\$99,000)
- s 532(1) - 600 penalty units (\$198,000)
- s 533(1) - 600 penalty units (\$198,000)
- s 186A(1) – 1200 penalty units (\$396,000)

If you choose to pay the infringement notice on time, and the infringement notice is not withdrawn by the department, court proceedings seeking a civil penalty order under Part 4 of the RPA will not be brought against you in relation to the alleged contravention.

Payment of the amount payable in the infringement notice is not an admission of guilt or liability.

If you choose to pay the infringement notice, your payment options depend on the penalty unit amount of the notice.

Two penalty unit notices

For infringement notices of 2 penalty units, you must either make your payment at the Australian Border Force (ABF) duty counter before leaving the airport OR request an extension of time to pay the infringement notice before leaving the airport.

For infringement notices of 2 penalty units, the payment period closes as soon as you leave the airport unless you have requested an extension of time before you leave the airport.

Other penalty unit notices

For infringements of 6, 12 or 20 penalty units, you can pay either at the Australian Border Force (ABF) duty counter before leaving the airport or within 28 days of the infringement notice date.

Infringement notices of 6, 12 and 20 penalty units have a 28-day payment period, unless you have requested an extension of time to pay within your current (open) payment period.

The department cannot accept a payment from you once the payment period has closed.

Can I arrange a payment plan for my infringement notice?

No. The department is unable to provide formal payment plans for infringement notices. The department cannot accept partial payments for infringement notices, all notices must be paid in full in one payment.

Can I pay my infringement notice online?

No. There is currently no facility to pay an infringement notice online. The department only accepts payment for infringement notices by credit card, money order or cheque. Payments can be mailed to:

Infringement Notice Scheme
Department of Agriculture, Fisheries and Forestry
GPO Box 858
Canberra ACT 2601
Or by calling:
1800 900 090

Two penalty unit notices

If you have been given a 2-penalty unit infringement notice and do not wish to pay at the time, you can request an extension of time to pay by asking the biosecurity officer who has given you the infringement notice before leaving the airport. If you do not request an extension before leaving the airport, your

payment period automatically closes after you leave the airport. Because of this, you cannot request an extension of time after you have left the airport.

If you have been granted an extension of the payment period at the airport and require additional time to pay your infringement notice, you may apply to the Director of Biosecurity for a further extension of time to pay. This request must be made prior to your payment period closing.

Other penalty unit notices

The time to pay an infringement notice depends on the nature of the notice. Infringement notices for 6, 12 or 20 penalty units have a 28-day payment period. If you require additional time to pay your infringement notice, you may apply to the Director of Biosecurity for an extension of time to pay. This request must be made prior to your payment period closing. To request a further extension of time to pay, you need to apply to the Director of Biosecurity by completing the online lodgement form on our website or emailing the Infringement Notice Unit (INU). If you are requesting a further extension of time to pay, you must apply before your current extension period ends. Payments received outside of your extended payment period cannot be accepted by the department.

If you do not believe an infringement notice should have been given, you may write to the Director of Biosecurity to request that your infringement notice is withdrawn. Your request (e.g. letter, email or online lodgement) should be done as soon as possible after the infringement notice is given to you.

An infringement notice may be withdrawn if:

- You have not engaged in the conduct that is alleged on the infringement notice;
- There are medical circumstances that affected your ability to declare goods or comply with the Biosecurity Act 2015;
- There were circumstances outside of your control that affected your ability to declare goods or comply with the Biosecurity Act 2015; or
- There is additional information that was not considered at the time the infringement notice was given.

An infringement notice may also be withdrawn for any other reason at the discretion of the Director of Biosecurity.

You should include the following information in your written request:

- The infringement notice reference number (for example QA15011111);
- Your name and contact details;
- Your version of events;
- The reason a review is being requested (refer to the table below);
- Supporting evidence (refer to the table below); and
- Any other information that may assist the Director of Biosecurity in reviewing your request.

NOTE: Providing false or misleading information is a serious offence and you may be liable to a civil penalty.

Reason for requesting withdrawal	Submission to include	Supporting evidence
You believe you have not engaged in the conduct described on the infringement notice.	Your version of events. Why you believe you did not engage in conduct that allegedly contravened the Biosecurity Act 2015. Why you were unable to comply with the Biosecurity Act 2015 at the time of the alleged contravention.	Where relevant you should include evidence to show that the conduct did not occur.
Medical circumstances affected your ability to declare goods or comply with the Biosecurity Act 2015 Examples may include:	Why your medical circumstances meant you could not correctly declare goods or comply with the Biosecurity Act 2015. Note: in some circumstances it may be preferable for a third party (e.g. a family member) to act on your behalf by completing an Authority to Act form.	Where relevant you should include supporting evidence, such as:
Circumstances outside of your control that affected your ability to declare goods or comply with the Biosecurity Act 2015 Examples may include:	Why you were unable to comply with the Biosecurity Act 2015 at the time the infringement notice was given.	Where relevant you should include supporting evidence, such as:
Additional relevant information that was not considered.	Your version of events. Why you believe the infringement notice should be withdrawn.	Where relevant you should include evidence that supports the additional information you provide.

The following table details common submissions that are usually not considered as grounds for withdrawal:

Reason for requesting withdrawal	Notes
You did not understand Australia's biosecurity requirements.	Travellers are responsible for familiarising themselves with Australia's biosecurity requirements and complying with the Biosecurity Act 2015.

You have not travelled to Australia before.	Travellers are responsible for familiarising themselves with Australia's biosecurity requirements and complying with the Biosecurity Act 2015.
You have not contravened the Biosecurity Act 2015 before.	Travellers are responsible for familiarising themselves with Australia's biosecurity requirements and complying with the Biosecurity Act 2015.
You cannot pay the infringement notice amount due to financial hardship.	You may request an extension of time to pay the infringement notice. Note: The infringement notice penalty amount cannot be reduced

For privacy reasons, if you are acting on behalf of a person who has received an infringement notice you must provide an [Authority to Act form](#). The Director of Biosecurity will be unable to review your request if this form is not provided.

A request for withdrawal does not automatically extend the infringement notice payment period. If you would prefer to pay after your request for withdrawal is reviewed please state the following in your correspondence to the department (e.g. in your letter/email): "I would like to request an extension of time to pay my infringement notice for the duration of the withdrawal review period". If lodging your request for withdrawal via the online lodgement form, select "Request for Duration" from the drop-down box.

The Director of Biosecurity can decide to either:

- withdraw the infringement notice and close the matter; or
- not withdraw the infringement notice.

You will be notified of the Director of Biosecurity's decision in writing. You will receive a refund of the money you have paid if the infringement notice is withdrawn.

Please note that this decision made by the Director of Biosecurity is not a reviewable decision under the Biosecurity Act 2015 or by the Administrative Review Tribunal.

Forms

- [Infringement Notice Scheme - Authority to Act \(PDF 246 KB\)](#)
- [Online request for withdrawal or extension](#)

If you have difficulty accessing these files, contact InfringementUnit@aff.gov.au for assistance.

Contact us

Please contact the Infringement Notice Unit via email: InfringementUnit@aff.gov.au.

This email inbox is checked during business hours, Monday – Friday 8.30 am - 4.30 pm AEST.

Phone: 02 6272 4965

Postal address:

Infringement Notice Scheme

Department of Agriculture, Fisheries and Forestry

GPO Box 858

Canberra ACT 2601

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/legislation/compliance/infringement-notice-scheme/infringement-notice-at-the-airport>